

demurrer, or motion to strike is filed, or **after a demurrer** or motion to strike **is filed but before the demurrer** or motion to strike **is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer** or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant's demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 12.11.

Accordingly, the Court orders the Demurrer off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Demurrer is ordered OFF-CALENDAR as moot.
2. The Court shall issue the order after hearing.

16. 9:00 AM CASE NUMBER: C25-02627

CASE NAME: JAMES BREEN VS. HEATHER BREEN

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BREEN, HEATHER

TENTATIVE RULING:

The demurrer of Defendants Heather Breen and Adrienne Slavens to the complaint of Plaintiff James Breen is **SUSTAINED WITHOUT LEAVE TO AMEND.**

Background

This case arises from the dissolution of the marriage of Plaintiff James Breen and Defendant Heather Breen, and the domestic conflict that preceded and accompanied it. Plaintiff seeks monetary damages against Heather and her mother Adrienne Slavens (Adrienne), alleging that their conduct during the parties' separation in 2023 constituted intentional infliction of emotional distress. (Complaint, p. 1:21-22.)

Plaintiff makes the following allegations. From January 2023 to July 2023, Heather Breen exerted "coercive control over the parties' small shared two-bedroom apartment. Her undiagnosed sound sensitivity disorder made it difficult for her to be in the same room with him. She was sensitive to every sound including chewing and typing and would not allow him to be in the small kitchen at the same time as her because his presence bothered her. (*Id.* ¶ 2.)

During this same period, Heather Breen controlled the couple's finances and gave Plaintiff an allowance of \$1,000 dollars a month. When he went over, she would berate him and tell him he was spending too much. (*Id.* ¶ 3.)

Heather would isolate herself in a bedroom where she slept with Clara, their eleven year old daughter who has special needs. Due to her sound sensitivity disorder, Heather was bothered by his presence.

Throughout January 2023, plaintiff did not feel welcome in his own home and either spent time walking the streets of Walnut Creek or stayed in his bedroom when he was home. When he was in that bedroom, Heather Breen would make sure to close the door, making him feel shut out and disconnected from Clara. (*Id.* ¶¶ 2-4.)

On February 3, 2023, plaintiff alleges Heather took Clara without notice, leaving the apartment empty with no note while plaintiff was returning from what he describes as a four-hour walk in San Francisco. Plaintiff does not explain what prompted the walk or what, if anything, occurred in the apartment before he left. (*Id.* ¶ 5.) He alleges she disclosed only that she was at an undisclosed hotel and refused to reveal her location or permit contact with Clara, who is nonverbal and could not communicate with him independently. Plaintiff characterizes this as the first of two “abductions.” He alleges he “wanted to be supportive and agreed to let Heather go on vacation for a week in Central Valley with Adrienne...,” during which time his access to Clara was limited to occasional photographs. (*Id.* ¶ 7.)

He alleges that Heather an email on February 3, 2023 admitting to having misophonia and acknowledging that “it was tough to live with.” (*Id.* ¶ 8.) Plaintiff alleges he agreed to marriage counseling and attended a solo preparatory session with Karin Schlanger, Heather's marriage counselor, on May 31, 2023, but that no joint counseling session was scheduled in the nearly six weeks that followed despite that agreement, and that Heather's sound sensitivity issues worsened during this period. He complains that he was assigned a kitchen schedule for cooking his own dinner and that his wife did not say goodnight to him before going to bed. (*Id.* ¶¶ 9-10.)

On July 8, 2023, Plaintiff alleges the parties had a verbal disagreement about the failure to schedule joint counseling sessions, after which he left the apartment. Upon returning five hours later he found the apartment empty with no note. Heather did not answer his calls and sent a text stating she and Clara were staying at an undisclosed hotel. (*Id.* ¶¶ 11-12.) Plaintiff characterizes this as the second abduction.

On July 9, 2023, Heather texted that she was going to stay with Adrienne in San Diego, then refused to respond further, taking Clara on what plaintiff describes as a “forced” five hundred mile drive. (*Id.* 13.) He alleges he was unaware of Clara's actual location for over 24 hours and spent that period in tears and unable to sleep. (*Id.* ¶14.)

On July 10, 2023, “due to the fact that [he] wasn't sure what Heather [] was going to do next,” plaintiff went to the bank and divided the parties' joint checking account, at which point he learned for the first time that it held fifty-six thousand dollars. (*Id.* ¶15.) Plaintiff does not allege that Heather had taken or threatened to take any action with respect to the parties' finances before he divided the account.

Plaintiff alleges that Heather “finally” contacted him “that same day” in response to learning of the account division, describing the drive to San Diego as difficult and it had been difficult to care for Clara during the trip. (*Id.* ¶ 16.)

Plaintiff alleges he lost a week of work in July 2023 due to the shame and humiliation he felt that his

wife had taken their child. He attempted to reason with Heather and remind her that he had been supportive of her in the past and had agreed to go to marriage counseling, which she never followed up on. He alleges he was deeply depressed and within a week had to remove all family photos, toys, and remembrances of Clara from his sight and put them in Clara's bedroom so they would be out of view. (*Id.* ¶18.)

From July 8 through August 3, 2023, plaintiff saw Clara in one FaceTime call. He acknowledges that Heather offered to let him have FaceTime calls but characterizes them as painful because Clara is nonverbal and does not respond unless prompted to do so by her mother. The single FaceTime call that took place ended up being painful because Clara barely acknowledged him during the call. (*Id.* ¶19.)

During this same period, plaintiff alleges Adrienne made no effort to reach out to him. He notes that before 2023 he and Adrienne were close, having lived together with her and her husband Dennis Slavens for four years, during which time he assisted in Dennis's care as his Parkinson's worsened, as he was a stay-at-home father and happy to help. He complains that despite this history, Adrienne did nothing to assist in advocating for Clara's return during the entire month of July 2023. (*Id.* ¶ 20.)

Plaintiff alleges that during this period he was struggling with depression made worse by the fact that he was battling what he thought to be hypomania, which he identifies as bipolar disorder type 2, a condition he had diagnosed himself after much research in his early thirties. He had never had a therapist or a psychiatrist in his entire life and had never taken medication. He alleges he was able to manage his triggers and live a productive, stable life. (*Id.* ¶ 21.)

Plaintiff alleges that Heather's worsening sound sensitivity over the last months of the marriage became a trigger for him as she started to "gaslight" him into thinking he was threatening or dangerous, pushing him into self-blame and suicidal ideation over the month of July 2023 after she took Clara five hundred miles away with no warning. (*Id.* ¶22.)

On July 17, 2023, the parties attended a joint counseling session with Karin Schlanger at which Plaintiff alleges he stated he would do anything to save the marriage and secure Clara's return. (*Id.* ¶ 23.) He alleges Heather's stated condition for return was that he agree to attend individual therapy, which he agreed to do, but that the therapist's response to his agreement was belittling and manipulative, causing him to hang up on the session. (*Id.* ¶¶ 24-25.) While searching for a therapist, Plaintiff alleges he sent Heather an email disclosing details about what he believed was hypomania, *apologizing for causing her to flee*, and stating he was more a danger to himself than to anyone else. (*Id.* ¶ 26, emphasis added.)

On July 22, 2023, Heather asked Plaintiff whether he would be willing to give her and Clara the apartment for the month of August while they figured things out. Plaintiff refused to leave, stating he had done nothing wrong and had never been a danger to Heather or Clara, and asked what the metric would be to get back into his own home if he had done nothing wrong and had actively worked to save the marriage by attending counseling. (*Id.* ¶¶ 27- 28.)

On July 23, 2023, plaintiff alleges that because he was feeling alone and his wife would not listen to him, he attempted to take his own life by taking sleeping pills and trying to smother himself with a plastic bag, writing what he describes as the first suicide note he had ever written in his life. He alleges he failed at that attempt, did not call for help, and did not tell Heather because he felt it would be used against him. He alleges the suicidal ideation passed and he did not attempt to harm himself again in 2023. (*Id.* ¶¶ 29-30.)

Due to Heather's ultimatum that she would not return home until he went into therapy, plaintiff signed up for BetterHelp and requested a therapist with experience in bipolar disorder, and was assigned to a therapist named Elmer Otey. He informed Heather that he had signed up and would be attending his first session, and also told her that a close family friend named Ron Rowell had agreed to let him stay overnight at his house if Heather felt unsafe and needed to be alone in the apartment upon her return. (*Id.* ¶ 31-32.)

On July 30, 2023, plaintiff contacted Heather to inform her he had attended his first session with Elmer Otey. Heather rescinded her offer to return if he went into therapy, stating that lines in the sand do not work, and still refused to bring Clara home from San Diego. On August 1, 2023, Heather stated she would return by the end of the week and would let him know when she was on the road. (*Id.* ¶¶ 33-34.)

On August 3, 2023, Heather texted with little warning that she and Adrienne were driving back that day. Plaintiff alleges he was “not asked for permission,” that Adrienne's inclusion implied he was unsafe in his own home, and that upon arrival Heather was “polite but not talkative” and focused primarily on Adrienne. (*Id.* ¶¶ 35-36.) He alleges the defendants then reorganized Clara's small bedroom to accommodate all three of them sleeping together, rejecting his offer to swap bedrooms, and spent the majority of their time behind a locked door while he heard laughter through the wall, feeling like an unwelcome guest in his own home. (*Id.* ¶¶ 37-39.)

On August 4, 2023, Plaintiff requested money from his own paychecks, which were still being deposit into Heather's account. He alleges Heather demanded an itemized list of his July expenditures before she would pay over those funds, which he declined to provide on the grounds that it was his own money. When she refused to discuss it “face to face” he changed his direct deposit arrangement that same evening. (*Id.* ¶¶ 40-42.)

On August 5, 2023, Heather asked whether Plaintiff would move out, stated she did not want to discuss the separation while cohabitating, and indicated she was giving notice to move in September. (*Id.* ¶ 43.)

Because he had been told he could not discuss the separation and that Heather was giving notice, plaintiff spent most of his time looking for new housing or staying in his bedroom. He alleges that most days around 6:00 p.m. after dinner, Heather would ask if he wanted her to bring Clara in for a visit. Rather than accepting these offers as genuine, plaintiff alleges it was evident to him that Heather was making them only to create a favorable record for the court when the two separated or divorced.

(*Id.* ¶ 44.)

On August 5, 2023, after Plaintiff contacted the apartment manager to report Adrienne's presence as an unauthorized guest, Heather warned him that involving outside parties would force her to take legal action. Plaintiff alleges that this threat was designed to silence him, and that it did. He further alleges that Heather's statement that her mother was staying because she did not feel safe alone with him caused him additional emotional distress because, in his view, it implied he was dangerous. (*Id.* ¶¶ 45-46.)

Plaintiff alleges that Heather and Adrienne, who had announced they were moving out, continued packing up the apartment and moving things into storage, filling it with boxes. Plaintiff found the sight of two people packing their belongings emotionally distressing, describing it as feeling like his life was being torn apart and that he was powerless to stop it. (*Id.* ¶ 47.)

Plaintiff thereafter located a new apartment in San Francisco, submitted an application, and informed Heather he would be moving out with a move date of September 5, a few days after she had indicated she planned to give notice herself. Heather pointed out that she had not yet given notice to the manager and that because plaintiff had not given her thirty days' notice he would be responsible for overlapping rent at the old apartment in addition to first, last, and deposit at his new apartment. She declined to absorb these costs on his behalf. Plaintiff characterizes her refusal to do so as an unreasonable demand. (*Id.* ¶¶ 48-49.)

On August 22, 2023, plaintiff was working from home and went into the kitchen area to work remotely. Heather and Adrienne were eating breakfast in the living room, focused on their phones, while Clara sat in a chair and ate breakfast across from them. (*Id.* ¶ 50.) When Heather went to take a shower, plaintiff used the opportunity to say good morning to Clara, who mumbled that she was wet. Plaintiff reached down and discovered that Clara had soaked through her diaper, wetting both her clothes and the chair beneath her. Plaintiff immediately changed Clara and, as he passed Adrienne, mumbled a comment that it was great that people were on their phones and not watching Clara. Adrienne left the room and went into Clara's shared bedroom. After plaintiff changed Clara, Clara went into the shared bedroom with Adrienne, leaving plaintiff alone in the living room. (*Id.* ¶¶ 51- 52.)

Plaintiff then moved his laptop to the living room couch, moving what he describes as junk out of the way due to the disarray from the packing, and set a small basket of books to one side on the floor so he could work at the coffee table. (*Id.* ¶ 53.) Minutes later, Adrienne came out of the shared bedroom, focused on something on the floor, and began taking photographs with her phone of the basket, which had fallen over. She then began taking photographs of plaintiff sitting at the coffee table. Plaintiff asked what she was doing and she did not answer, continuing to photograph him. (*Id.* ¶¶ 54-55.) Plaintiff told her to stop. After a minute she turned to go back into the bedroom, then turned back and called him an ass before disappearing into the shared bedroom. (*Id.* ¶ 56.) Plaintiff then stood up, saw the tipped over basket, and shouted to the bedroom that it was just a basket on its side and not something he had thrown in any violent way. There was no response from the shared bedroom. (*Id.* ¶ 57.)

When Heather came out of the shower, plaintiff immediately told her that Adrienne had forced a camera in his face and had taken photographs to imply he had done something wrong with a basket, and that Adrienne had refused to stop despite being told to do so. (*Id.* ¶ 59.) Heather declined to speak to her mother about the incident, telling plaintiff to talk to her mother himself and stating she had nothing to do with it. (*Id.* ¶ 60.) Adrienne then came out of the bedroom and a verbal disagreement ensued between her and plaintiff about why she had taken photographs of him in his own apartment. Adrienne refused to answer directly and repeated only that this is why I am here, which plaintiff characterizes as an accusation about his temper and Heather's feeling of safety. Plaintiff alleges that at no point did he lose his temper during the argument. (*Id.* ¶¶ 61-62.)

Plaintiff then turned to speak to Heather, who was getting Clara ready for an appointment. When plaintiff raised the fact that Clara had wet herself through her diaper while Heather and Adrienne were on their phones, Heather suddenly clutched Clara to her chest from behind and shouted twice that they would have to pry Clara from her dead hands. (*Id.* ¶ 63.) Plaintiff alleges he had never threatened to take Clara away from Heather, and says this statement has been raised in multiple family court filings and ignored by the court. (*Id.* ¶ 64.)

While Heather was preparing to leave, Adrienne stepped in to reassure Clara, making statements about how she knew daddy was yelling and that it was okay, which plaintiff characterizes as placing blame on him and ignoring Adrienne's own responsibility in the altercation. (*Id.* ¶ 66.)

Plaintiff alleges he was visibly shaken by the altercation and realized he needed to get out of the apartment, stating that Heather and Adrienne had made the apartment unlivable and that he was terrified he would be falsely accused of trying to hurt his wife or daughter. He contacted his new San Francisco landlord, who confirmed the offer to move in early at no extra cost, and ordered an inflatable mattress to be delivered the next day. He then sent himself a detailed email documenting what had occurred that morning to protect himself from false accusations. (*Id.* ¶¶ 68-70.)

Heather responded to that email and did not disagree with plaintiff's version of events, stating only that he had not understood what she meant by the statement that they would have to pry Clara from her dead hands. Plaintiff stayed in the larger bedroom and away from Heather and Adrienne. His inflatable mattress arrived the next day and he left that evening. The following evening, he slept in his empty studio apartment on the inflatable mattress, which was defective and leaked consistently, but alleges he would rather have slept on a half-inflated air mattress in an empty studio than return to the apartment. (*Id.* ¶¶ 71-73.)

On September 2, 2023, Heather asked when he wanted to set up visits with Clara. Plaintiff told her that the events of July and August were too much for him and that he did not want to come back to the apartment and informed her he needed time away and would return for visits on October 1, 2023. Plaintiff alleges Heather ignored this message and contacted him on September 15, 2023, stating that her lawyer was telling her she needed to make a decision about the divorce. Plaintiff told her he would not discuss anything with her until he returned. Heather and Adrienne stayed in the shared apartment until October 1, 2023, remaining an additional month after Heather had said she was

giving notice and leaving in September, which plaintiff characterizes as staying after having “forced” him out. (*Id.* ¶ 74- 76.)

Heather filed for marital dissolution in Contra Costa Superior Court on November 15, 2023. Plaintiff alleges that her original declaration contained no mention of what he characterizes as the two abductions of Clara and made no claims of domestic abuse, instead stating that plaintiff was simply unhappy with her mother living with them and that he had voluntarily chosen not to see Clara for the month of September. Plaintiff characterizes this as perjury by omission at the direction of Heather's legal counsel. (*Id.* ¶ 77.)

On February 1, 2024, Plaintiff alleges he voluntarily admitted himself to Hayvenwick Hospital for seven days due to suicidal ideation, which he attributes to the abductions and what he characterizes as a parental alienation campaign. He alleges he was diagnosed by the lead psychiatrist there as hypomanic, consistent with a self-diagnosis he had made years earlier, and that this hospitalization was subsequently used against him at the first custody hearing on March 11, 2024, resulting in an order for supervised visitation. Plaintiff was re-diagnosed with Complex PTSD by Dr. Grant Meredith in March 2024 and alleges he stabilized by May 2024 after medication adjustment. (*Id.* ¶¶ 78-81.)

On July 24, 2025, plaintiff alleges a family court hearing was held at which he sought to terminate the supervised visitation order that had been in place for over a year, and at which he alleges Heather perjured herself to maintain it. On August 1, 2025, Judge Gina Dashman ordered supervised visits to continue until a November 2025 review hearing and noted that plaintiff had the option of appointing a non-professional supervisor if both parties agreed. Plaintiff alleges Heather refused to agree to a non-professional supervisor, leaving him with only a professional supervisor who was available for one hour on alternating Friday afternoons, requiring him to take leave from work to attend. Plaintiff characterizes the resulting limitations on his access to Clara as causing him further emotional distress. (*Id.* ¶¶ 82-86.)

Plaintiff opens his demand for relief by stating that defendants "have not acknowledged the effect of their actions" on him, and that the only way either defendant will "learn their lesson and take accountability" is through the financial payment of damages. (Complaint, p. 19.) Plaintiff proposes damages using a per diem method based on his current hourly salary of \$51 per hour, applied across four periods. For the period from January 2023 through July 2023, he seeks \$100 per day, which he characterizes as slightly less than two hours of his salary. For the period from July 2023 through September 2023, covering the second departure with Clara, Heather's return with Adrienne Slavens, and the circumstances of his departure from the shared apartment, he seeks \$200 per day. For the seven days of his February 2024 hospitalization at Hayvenwick Hospital he seeks \$1,248 per day. For the period from August 1 through November 1, 2025, representing three months of supervised visitation he attributes to Heather's allegedly perjured testimony, he seeks \$51 per day. His total demand across all four periods is \$49,326. (*Id.*, pp. 19-20.)

Defendants now demur to the complaint in its entirety, arguing that none of the conduct alleged meets the legal threshold for the tort of intentional infliction of emotional distress, that the complaint

is uncertain and fails to apprise defendants of the claims they are being asked to meet, and that the action is, in substance, nothing more than a rerun of the family law case pending in the family law division of this Court.

Meet and Confer

California Code of Civil Procedure section 430.41, subdivision (a) requires the parties to meet and confer in good faith before the filing of a demurrer in an attempt to informally resolve the objections raised therein. A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41 (a)(4).)

Plaintiff has filed a statement asserting that defense counsel refused to engage in a substantive meet and confer and filed a statement misrepresenting that a substantive meet and confer had occurred. The court declines to resolve those competing characterizations of events. Regardless of the adequacy of the meet and confer process, the court will consider the merits of the demurrer.

Legal Standard

A demurrer is properly sustained when "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e).) In ruling on a demurrer, the court assumes the truth of properly pleaded factual allegations, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

It is an abuse of discretion to sustain a demurrer if there is a reasonable possibility that the defect can be cured by amendment. (*Ibid.*) The burden is on the plaintiff to demonstrate how the complaint can be amended to state a valid cause of action. (*Ibid.*)

Analysis

The complaint does not clearly identify its cause of action but refers throughout to the infliction of emotional distress and to outrageous conduct by the defendants. The complaint is therefore properly construed as alleging the state law tort of intentional infliction of emotional distress. "The elements of a cause of action for intentional infliction of emotional distress are (1) the defendant engages in extreme and outrageous conduct with the intent to cause, or with reckless disregard for the probability of causing, emotional distress; (2) the plaintiff suffers extreme or severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the plaintiff's extreme or severe emotional distress." (*So v. Shin* (2013) 212 Cal.App.4th 652, 671.) As the California Supreme Court has explained, this tort imposes liability only for "conduct exceeding all bounds usually tolerated by a decent society, of a nature which is especially calculated to cause, and does cause, mental distress." (*Cole v. Fair Oaks Fire Dept.* (1987) 43 Cal. 3d 148, 155 (Cole).) Further, behavior "may be considered outrageous if a defendant . . . abuses a relation or position which gives him power to damage the plaintiff's interest." (*Id.*)

Plaintiff frames the purpose of defendants' alleged conduct in his opening paragraph. He states that "the reason for inflicting emotional distress was to force him out of the shared apartment in August

2023 and to begin a parental alienation campaign to keep him away from his special-needs daughter." (Complaint, Introduction, Lines 22-24.) His damages theory confirms this framing. Two of his four claimed damages periods are not grounded in discrete tortious acts at all. He seeks compensation for a psychiatric hospitalization he expressly attributes to the abductions and the parental alienation campaign against him after Heather returned from San Diego in August 2023. (*Id.* ¶ 78.) He seeks further compensation for three months of court-ordered supervised visitation he attributes to Heather's allegedly perjured testimony in the family court proceedings. (*Id.* ¶ 82.) Plaintiff is thus asking this court to compensate him for damages he claims resulted from the loss of his parental relationship.

As to Heather Breen, plaintiff's claims are for interference with his parental relationship and his right to the society and affection of his daughter. He alleges she took Clara from the shared apartment on two occasions without notice, restricted his access to Clara during the periods that followed, and orchestrated what he himself characterizes as a parental alienation campaign to keep him away from his daughter. California does not permit a claim for intentional infliction of emotional distress to lie on the basis of one parent's interference with the other's parental rights.

In *In re: Marriage of Segel* (1986) 179 Cal.App.3d 602, the appellant alleged the respondent, the appellant's husband, caused the appellant severe emotional distress by alienating the parties' child against her. The trial court sustained the respondent's demurrer and dismissed the appellant's action. (*Id.* at p. 606.) The Court of Appeal held the appellant's fourth cause of action for intentional infliction of emotional distress failed to state a cause of action. (*Id.* at p. 607.) The Court noted that the primary right the appellant sought to enforce "is her right to the society and affection of her child, namely, the right of filial consortium" and California does not recognize the right of filial consortium as a basis for a cause of action. (*Id.* at p. 607.) The Court cited *Borer v. American Airlines, Inc.* (1977) 19 Cal.3d 441, 447 and *Baxter v. Superior Court* (1977) 19 Cal.3d 461, noted they were not on point to the current situation, but "nevertheless, indicate a public policy against awarding damages in loss of filial consortium situations except in the most narrow instances of providing a remedy for specific and measurable economic losses; but not in situations where the claim involves intangible injuries to a parent-child relationship." (*Id.* at p. 608.) The Court further stated that appellant sought to enforce the primary right of visitation with her child, and the claim respondent damaged her filial relationship with the child by interfering with her visitations. (*Id.*) The Court concluded that recognizing this as a cause of action would undermine the Family Law Act, "which is designed, among other things, to regulate and supervise the care, custody and financial support of minor children whose parents are the subject of dissolution proceedings." (*Id.* at p. 609.) The Court further noted that a parent who has difficulties with visitation should direct those issues to the family law court, "[o]therwise, disputes over visitations could be used as a vehicle for claiming monetary damages, a rather distasteful resolution of a problem which is supposed to involve primarily the best interests of the child, and not the parent." (*Id.*)

Plaintiff expressly characterizes both departures as child abductions. (Complaint, Legal Claims, ¶1.) To the extent plaintiff's complaint can be read to allege a cause of action under Civil Code section 49,

that claim fails as a matter of law. Civil Code section 49, subdivision (a) forbids the abduction or enticement of a child from a parent, or from a guardian entitled to its custody. The seminal case interpreting Civil Code section 49 is *Rosefield v. Rosefield* (1963) 221 Cal. App. 2d 431. At the time the complaint in that case was filed in 1962, the allegedly abducted child was two and one-half years old. The parents had separated shortly after their marriage in 1959, before the child was born. The mother had physical custody of the child at all material times until the asserted abduction, which occurred in 1961. In 1960, the father induced his wife to enter a conditional reconciliation for the express benefit of the child. In February 1961, the father and his father, the child's grandfather, willfully, fraudulently and maliciously abducted the child from her mother, and did harbor, secrete and conceal her from her mother, depriving the mother of the society and services of the child. (*Id.* at 432-433.) Conspiracy to do these things was alleged in a separate count, and the complaint further alleged that the mother had been put to the expense of about five thousand dollars in efforts to locate the child. The superior court awarded legal care and custody of the child to her mother in April 1961, but by that time the child had been taken away and concealed. The child was apparently still missing at the time of the appellate proceedings. (*Id.* at 433.)

The grandfather argued that a charge of conspiracy could not be made against a party who merely agrees or contrives with the father to take the child. (*Id.* at 435.) Rejecting this contention, the Court of Appeal reasoned that it was a legal wrong for the husband and father to abscond with the child, and that the grandfather would be liable in damages even for the father's actions if conspiracy were shown. The court was careful, however, to limit its holding: "of course, not every transportation of a child by one parent causing the other parent some loss of custody and association with the child would be wrongful. If, however, one parent makes away with the offspring, removes it effectually from judicial control, conceals it, and leaves the other parent utterly bereft of the means of enjoying any of the privileges of parenthood, it is folly to say that the decamping parent is merely exercising his equal right to the custody of the child. There is no equality about it." (*Id.*)

Here, although Plaintiff's complaint uses conclusory terms such as abduction, there is no allegation of the type of permanent absconding or concealment at issue in *Rosefield*. On the contrary, during the first departure in February 2023, plaintiff expressly agreed to the arrangement, which resolved into a consensual vacation in the Central Valley. (Complaint ¶ 7.) During the second departure, Heather disclosed her destination by text the following day, allowed plaintiff at least some contact with Clara via FaceTime, participated in joint counseling with plaintiff nine days after leaving, and returned voluntarily within twenty-six days. (*Id.* ¶¶ 13, 19, 23, 34-35.) This is not making away with the child, removing it from judicial control, concealing it, or leaving the other parent utterly bereft of the means of enjoying any of the privileges of parenthood. (*Rosefield, supra*, at 435.) Simply put, mother's temporary stay with her mother during a marital breakdown, voluntarily concluded within weeks and accompanied by ongoing parental communication and the prompt filing of a dissolution action in the family law court, does not constitute an actionable abduction under Civil Code section 49.

Stripping away the parental interference allegations that *Segel* bars as a matter of law, what remains against Heather are allegations of unhappy marital cohabitation, a domestic budgeting disagreement,

and a legal threat made in response to plaintiff's attempt to enlist the apartment manager to force his mother-in-law out of the shared apartment. This tort imposes liability only for conduct exceeding all bounds usually tolerated by a decent society, of a nature which is especially calculated to cause, and does cause, mental distress. (*Cole, supra*, at 155 n. 7.) A spouse whose sound sensitivity disorder made cohabitation difficult, who provided her husband a monthly allowance and berated him for overspending, who slept behind a closed door in her daughter's bedroom, and who responded to a potential landlord complaint about her mother with a legal threat, has not engaged in such conduct.

The financial control allegations warrant particular attention because Plaintiff's own admissions defeat them. Plaintiff alleges Heather exercised total control over the parties' finances throughout the marriage. Yet on July 10, 2023, he walked into the bank and divided the joint account without obstruction, discovering in the process that it held fifty-six thousand dollars. (Complaint ¶15.) On August 4, 2023, when Heather refused to release funds from his paycheck deposits, he changed his direct deposit arrangement that same evening without difficulty or interference. (*Id.* ¶ 42.) A plaintiff who retains at all times the unobstructed ability to access joint funds and redirect his own income has not been subjected to financial control in any legally cognizable sense.

To the extent Plaintiff's complaint rests on allegations that Heather committed perjury in the family court proceedings, those allegations are barred by the litigation privilege. Civil Code section 47, subdivision (b) bars a civil action for damages for communications made in the course of judicial proceedings and "in any other official proceeding authorized by law." (Civ. Code § 47(b)(2), (3).) The privilege is absolute and applies regardless of whether the communication was made with malice or the intent to harm. (*Wise v. Thrifty Payless, Inc.* (2000) 83 Cal.App.4th 1296, 1302.)

Plaintiff's claims against Adrienne fare no better. Plaintiff alleges that Adrienne, with whom he describes having had a close prior relationship, made no effort to reach out to him or advocate for Clara's return during the month of July 2023. (Complaint ¶ 20.) The allegations do not establish that Adrienne abused any position that gave her power over plaintiff's interests. She had no legal authority over Plaintiff's access to his daughter and no obligation to intercede on his behalf in a marital dispute between her daughter and her daughter's husband. Neither do the allegations support a conclusion that her conduct was especially calculated to cause Plaintiff mental distress.

The central act alleged against Adrienne individually is the August 22, 2023 basket incident. Plaintiff alleges that after a small basket of books fell over, Adrienne photographed the basket and then photographed him at the coffee table, refused to explain herself when asked, called him an ass, and returned to the bedroom. Liability for intentional infliction of emotional distress "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050-51; CACI 1602 ["Outrageous conduct does not include trivialities such as indignities, annoyance, hurt feelings, or bad manners that a reasonable person is expected to endure"].) A house guest who photographs a fallen basket, declines to explain herself, and directs an epithet at a family member has not engaged in conduct so extreme as to exceed all bounds usually tolerated in a civilized community.

As the Court of Appeal has observed, there is "[a] recurrent theme in the family law opinions of this court ... disfavoring ... civil actions which are really nothing more than reruns of a family law case. [These decisions] all stand for the central idea that family law cases should not be allowed to spill over into civil law, regardless of whether the family law matter may be characterized as an action for fraud ..., malicious prosecution ..., or securities law violations... Almost all events in family law litigation can be reframed as civil law actions if a litigant wants to be creative with various causes of action. It is therefore incumbent on courts to examine the substance of claims, not just their nominal headings." (*Neal v. Superior Court* (2001) 90 Cal.App.4th 22, 25.)

The parties here are involved in a pending dissolution and custody matter in the Family Law Division of this Court, Case No. D23-04556. The present action arises out of the same marital relationship and parenting disputes that have been repeatedly addressed in those proceedings, during essentially the same period of conflict. Whatever heading Plaintiff places on his claims, the substance of this action appears to be a rerun of the family law case.

Disposition

Plaintiff has neither requested leave to amend nor offered any argument as to how the defects in the complaint could be cured by amendment. (*Churchman v. Bay Area Rapid Transit Dist.* (2019) 39 Cal.App.5th 246, 252.) Therefore, the demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**.

17. 9:00 AM CASE NUMBER: L23-01676
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. NICOLE MUNOZ
***HEARING ON MOTION IN RE: AND NTC TO SET ASIDE DEFAULT JUDGMENT**
FILED BY:
TENTATIVE RULING:

Defendant and judgment debtor Nicole L Munoz ("Defendant") filed a Motion to Set Aside Default Judgment on January 20, 2026 (the "Motion to Set Aside"). The Motion to Set Aside was set for hearing on April 13, 2026. The motion is opposed.

Background

Plaintiff Jefferson Capital Systems LLC ("Plaintiff") filed a Complaint on April 5, 2023. A default was entered against Defendant on February 9, 2024. Thereafter, a default money judgment was entered on May 13, 2024 in the total amount of \$13,092.24 (the "Judgment").

Analysis

1. Purported Lack Of Proof Of Service

The Court first addresses the contention that the default and Judgment should be set aside because of the lack of service. Defendant contends that Defendant was "never properly served." See Memorandum of Points and Authorities, Motion to Set Aside, p. 3. Defendant contends because of such lack of service and actual notice of the lawsuit, the default and Judgment are void, including